

Ombudsman: 58% ignored?

*Testing the Ombudsman's 2025 figures
on environment and planning recommendations*

THE CLAIM UNDER REVIEW

***“7 recommendations, or 58%,
were not implemented.”***

Office of the Ombudsman, Annual Report 2025, on the Commissioner for Environment and Planning.
Newsbook, 2 July 2026: the highest rate among the commissioners; 22 reports escalated to Parliament.

VERDICT: LARGELY SUPPORTED

Matches the tables; a small count and a snapshot

Version 1.1 · 6 October 2026

Status: no right of reply needed

Prepared from public sources and open data. No site visits.

Repository: github.com/leandergrech/Mizien

MIZIEN · AN INDEPENDENT FACT-CHECKING PROJECT

Contest a verdict, with evidence: github.com/leandergrech/Mizien/issues

TL;DR

Reporting on the Parliamentary Ombudsman’s 2025 annual report said that **58% of the Commissioner for Environment and Planning’s justified recommendations went unimplemented**, the highest rate of any commissioner, and that **22 reports were escalated to Parliament** [2]. We read the report itself [1] and recomputed the figures from its tables.

- 1

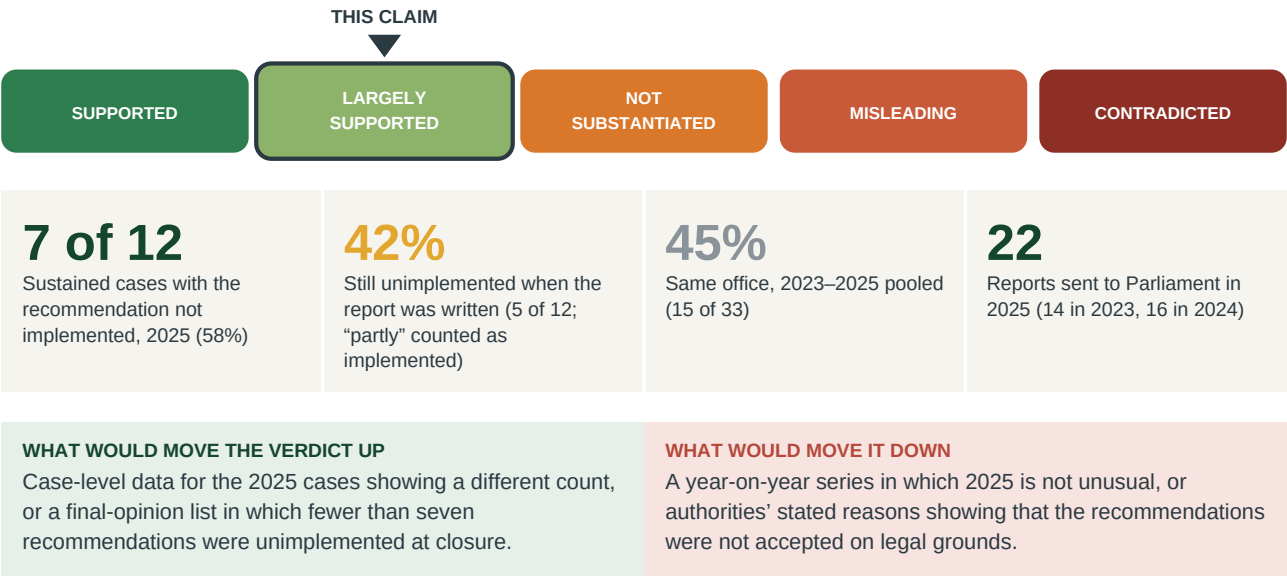
The number is the Ombudsman’s own. Table 1.3 of the 2025 report [1]: of 12 sustained cases closed by the Commissioner, 7 recommendations (58%) were not implemented. The 22 reports sent to Parliament match Table 1.22.
- 2

It is a small count, and it moves a lot. 7 of 12 is a 95% interval of roughly 32–81%. The same office had 6 of 13 (46%) in 2023 and 2 of 8 (25%) in 2024. Over 2023–2025 it is 15 of 33 (45%).
- 3

It is a snapshot at closure. The Commissioner’s own chapter says that five of the 12 were still unimplemented when the report was written; two more were implemented after being referred to the House. On that basis 42% remain open (counting the one “partly implemented” case of Table 1.3 as implemented).
- 4

“Highest” holds on the Ombudsman’s table, not on every denominator. Environment and Planning 58% against Education 53% of sustained cases. Counting only cases where a recommendation was made, Education is 67% (8 of 12). The Commissioner’s remit is also wider than “environment”: planning, building, transport licensing and heritage.
- 5

Verdict: largely supported (high confidence). The figures match the primary source; the caveats above do not change the substance.



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1

The statement and the primary source

Our candidate record took the figures from a Newsbook report of 2 July 2026 [2], which attributes them to the Parliamentary Ombudsman’s Annual Report for 2025. We read the report [1], published on the Office’s website. The Ombudsman’s wording is below. The newspaper’s phrase “justified recommendations” is a paraphrase of “sustained cases”.

Source	What it says	Our access	Status
Office of the Ombudsman, Annual Report 2025, p. 15 [1]	“The Commissioner for Environment and Planning had 12 sustained cases, representing 15% of the total, of which 7 recommendations, or 58%, were not implemented.” Table 1.22 (p. 37): 22 reports sent to Parliament in 2025.	Full text read (252 pages).	Primary
Newsbook, 2 July 2026 [2]	58% of the Commissioner for Environment and Planning’s justified recommendations “completely unimplemented”; 22 reports escalated to Parliament.	Read in full.	Locator

FAIRNESS NOTE

The Ombudsman states the figure plainly and uses it to argue for a parliamentary committee to follow up unimplemented reports. This check tests the numbers and how they are framed in reporting, not the merits of any individual case, and does not assess the authorities named in the report. Disagreement with a finding is a legitimate reason not to implement it; the report records what was not implemented, not why.

2

Method

Question. Do the Ombudsman’s tables support “58% unimplemented”, “highest among commissioners” and “22 reports escalated”, and how stable is the figure?

Data. We typed Table 1.3 (sustained cases closed, by office and outcome) from the 2023, 2024 and 2025 annual reports [1, 3, 4] and Table 1.22 (reports sent to Parliament) from the 2025 report into `data/cc-102/ombudsman_sustained_cases.csv`, and checked that every row adds up. `tools/cc-102-report/calc.py` recomputes the rates on two denominators and checks the 2025 totals (81 sustained cases, 22 not implemented, 22 reports). Intervals are Wilson 95%.

Grades. The Ombudsman’s annual reports are official institutional records (C). We have no access to the underlying case files; the case notes were not needed for the counts.

3

What the 58% counts

Table 1.3 counts **sustained cases closed during the year**, not complaints received and not individual recommendations: one case can carry several. “Not implemented” is the status when the case was closed. The Commissioner’s chapter [1, printed pp. 218–219; PDF pp. 219–220] gives the position later: of the 12 sustained cases, five recommendations were implemented, two more were implemented after referral to the House of Representatives, and five remained unimplemented (including the Planning Authority and the Transport Malta cases it lists). The two accounts reconcile only if the one “partly implemented” case is counted as implemented: Table 1.3 has 4 implemented + 1 partly = 5, which is the chapter’s five, and 7 not implemented at closure = the chapter’s 2 implemented later + 5 still open. The 42% (5 of 12) depends on that reading. The Commissioner’s remit covers planning, building control, transport licensing and heritage as well as environmental matters; the Planning Authority alone accounts for 37 of 86 complaints in 2025 [1, Table 3.4].

4

Results

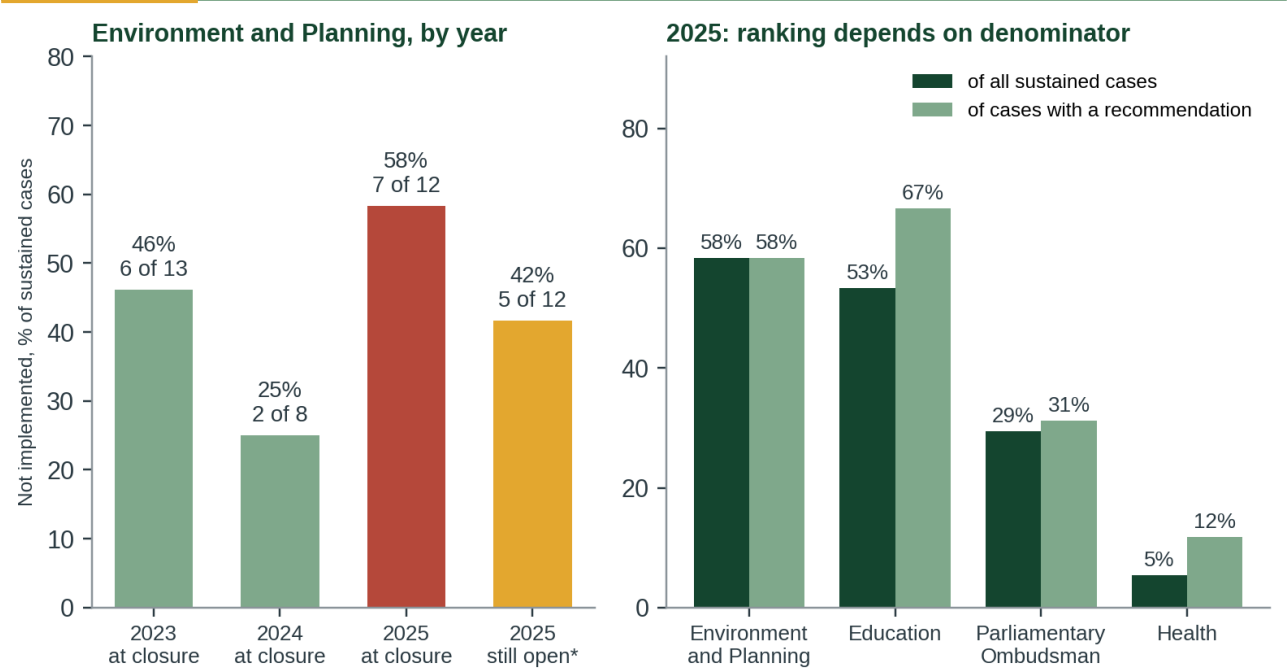


Figure 1. Left: share of the Commissioner for Environment and Planning’s sustained cases whose recommendation was not implemented. Right: 2025 rates by office on two denominators. Source: Office of the Ombudsman, annual reports 2023–2025, Tables 1.3 and 1.22 and the Commissioner’s 2025 chapter; data in data/cc-102/rates.csv. *Five of the 12 were still unimplemented when the 2025 report was written (“partly implemented” counted as implemented); two more were implemented after referral to the House.

2025, by office	Sustained cases	Not implemented	% of sustained	% of cases with a recommendation
Environment and Planning	12	7	58%	58% (12)
Education	15	8	53%	67% (12)
Parliamentary Ombudsman	17	5	29%	31% (16)
Health	37	2	5%	12% (17)
All offices	81	22	27%	29% (76)

Source: Table 1.3 [1]; recomputed in data/cc-102/rates.csv. Cases with a recommendation = sustained cases minus those sustained with no recommendation.

THE ARITHMETIC

7 ÷ 12 = 58.3%. The same ratio was 6 ÷ 13 = 46.2% in 2023 and 2 ÷ 8 = 25.0% in 2024; pooled, 15 ÷ 33 = 45.5%. With so few cases one case moves the rate by 8 points; the 95% interval for 7 of 12 is about 32–81%, and for 2024’s 2 of 8 about 7–59%. The year-to-year swing is within what chance alone could produce, so we do not read 2025 as a proven trend. The Ombudsman’s own series of reports to Parliament (Table 1.22) rises for the office as a whole, 14, 16 and 22, but not steadily for this Commissioner (5, 2, 7).

What this means for the statement

- **The figure is correct as the Ombudsman states it.** Both the 58% and the 22 reports match the tables.
- **“Highest” is true on the Ombudsman’s own basis** (58% against Education’s 53%), but the margin is one case’s worth and reverses if cases with no recommendation are excluded (Education 67%).
- **“Went unimplemented” is a status at closure.** By the time the report was written two of the seven had been implemented, leaving five (42%).

- **Newsbook’s “justified recommendations”** reads as a count of recommendations; the table counts sustained cases.
- **The 22 reports** equals the total of not-implemented cases in Table 1.3, but the split by office differs in two places (Parliamentary Ombudsman 5 vs 4, Health 2 vs 3). Environment and Planning agrees at 7. We report this as a reconciliation point, not an error in the claim.

5

Testing the sub-claims

Sub-claim	Said by	What the evidence shows	Rating
A. 58% of the Commissioner for Environment and Planning’s recommendations went unimplemented in 2025 (Table 1.3 counts the 12 sustained cases closed in 2025: 7 not implemented)	Ombudsman [1]; Newsbook [2]	7 of 12 sustained cases closed in 2025, status at closure (Table 1.3). Small count; 5 of 12 still open when the report was written.	CONFIRMED
B. The highest rate among the commissioners	Claim record; Newsbook [2] gives 58% and 53%	58% against Education’s 53% of sustained cases; 67% for Education on cases with a recommendation.	DEPENDS ON BASE
C. 22 reports escalated to Parliament in 2025	Ombudsman [1]; Newsbook [2]	Table 1.22: 22, up from 16 (2024) and 14 (2023).	CONFIRMED

6

Verdict and requests for evidence

VERDICT

LARGELY SUPPORTED

The figures match the Ombudsman’s tables; the count is small and the “highest” ranking depends on the base. Confidence: high.

Why. The 58% and the 22 reports are in the Ombudsman’s own report and recompute exactly. We rate the statement *Largely supported* rather than *Supported* because it is a snapshot of a very small count, two of the seven were implemented later, and “highest” is not robust to the choice of denominator. None of these changes the substance: a majority of this Commissioner’s sustained cases closed in 2025 without the recommendation being implemented.

What this verdict does not say. It does not say the authorities were wrong not to act, or that the Commissioner’s findings were right in each case. It is not a judgement of any authority or person.

Evidence we are asking for

- ☐ From the Office of the Ombudsman: the list of the 12 sustained cases of 2025 with their status at closure.
- ☐ From the Office of the Ombudsman: how the per-office counts in Tables 1.3 and 1.22 reconcile.
- ☐ From the authorities concerned: the reasons given for not implementing the five open recommendations.

7 Limitations

- Figures are typed from the published tables; we did not see case files. Counts are of cases, not of recommendations.
- Table 1.3 uses status at closure; later implementation is reported only in the Commissioner's narrative.
- Cases closed in 2025 may have been opened in earlier years, so rates are not a measure of 2025 conduct alone.
- A rate on 8–13 cases a year cannot support a trend claim. We tested no individual case on its merits.

References

- [1] Office of the Ombudsman, Malta (2026). *Annual Report 2025*, Table 1.3 (pp. 15–16), Table 1.22 (p. 37), Commissioner for Environment and Planning chapter (pp. 214–220), Table 3.4. Page numbers are the printed ones (PDF page = printed page + 1). Presented to the Speaker of the House, June 2026. (Full text read.)
<https://ombudsman.org.mt/media/0ownfd4k/digital-annual-report-2025-en.pdf>
- [2] Newsbook (2 July 2026). Public entities ignore Ombudsman as defiance reaches record high.
<https://newsbook.com.mt/en/public-entities-ignore-ombudsman-as-defiance-reaches-record-high/>
- [3] Office of the Ombudsman, Malta (2025). *Annual Report 2024*, Table 1.3.
<https://ombudsman.org.mt/media/q4nbhpzv/annual-report-2024-ombudsman.pdf>
- [4] Office of the Ombudsman, Malta (2024). *Annual Report 2023*, Table 1.3.
<https://ombudsman.org.mt/media/fr1ndd4u/annual-report-2023-en.pdf>
- [5] Miżien. Analysis code and outputs: tools/cc-102-report/; data/cc-102/.

Appendix A: series standards and verdict scale

Every investigation in this series follows the same rules so that verdicts are comparable and challengeable.

Verdict	Meaning
SUPPORTED	Evidence consistently backs the claim as stated.
LARGELY SUPPORTED	Backed by the evidence, with minor caveats that do not change the substance.
NOT SUBSTANTIATED	Stated more strongly than the evidence offered or available allows. May be true in some conditions but has not been shown.
MISLEADING	Omits material facts so that the overall impression is inaccurate, even if individual statements are defensible.
CONTRADICTED	The available evidence points against the claim.

Confidence

High: multiple independent lines of evidence agree. **Moderate:** evidence is relevant but incomplete or indirect. **Low:** evidence is thin, second-hand or conflicting.

Evidence grades

A experiment · B observational study with a control or gradient · C review, guidance or official statistics · D assertion or anecdote. The Ombudsman's annual reports are official institutional records (C).

Standards

- Quote the speaker, not the headline, with outlet and date, and link the original where possible.

- **Separate the claim from the evidence offered for it**, and say who made which statement.
- **Grade the evidence** and show differing views side by side where the evidence is unsettled.
- **State what we could not access or verify**, and what would change the verdict either way.
- **Ask for the missing evidence** in specific, answerable requests.
- **Offer a right of reply** where a check finds a claim Not substantiated, Misleading or Contradicted (or a pledge Not measurable, Off track or Missed), before wider circulation, and append responses.
- **Correct errors openly** with a version number and change log.
- **Whistle-blow only on evidence**: a verdict of *Misleading* or *Contradicted* requires documents or data that can be shown, not inference.
- **Check every side**. Government, opposition, NGOs and developers are held to the same standard.

Appendix B: revision log

Version	Date	Change
1.0	5 Oct 2026	First issue. Verdict: largely supported, high confidence. No right of reply needed (supported check).
1.1	6 Oct 2026	Corrections after audit: said how the 42% depends on counting “partly implemented” as implemented; gave printed and PDF page numbers for the Commissioner’s chapter; sub-claim A wording says sustained cases closed in 2025; Table 1.3 rows for 2023 and 2024 re-checked against the PDFs; Figure 1 enlarged; layout; status wording (no right of reply needed).